

Dhanraj v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 18 May 2022 · Writ-C No. 9351 of 2022 · **Disposed; liberty to object under clause 6.5; coercive action stayed.**

HEADNOTE

A writ challenging a recovery citation of Rs. 4,40,341 was disposed of without any opinion on merits, with liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution corporation within four weeks. If filed, the objection is to be decided expeditiously, preferably within four weeks, after hearing. Coercive action on the demand is restrained for eight weeks or until disposal, whichever is earlier.

FACTUAL SUMMARY

Dhanraj challenged a recovery citation dated 15 February 2021 for Rs. 4,40,341 on his electricity connection. He sought quashing of the citation, a statement of bills showing rates charged and sums deposited, and a direction to the power distribution corporation to decide his objection of 6 December 2021, with no coercive steps until then. Counsel for the corporation stated, on instructions, that an objection against the demand could be filed and would be decided in accordance with law within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to a disputed recovery citation

HOLDING

Without expressing any opinion on the merits, the writ was disposed of with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks, together with a certified copy of the order. If submitted in time, the objection shall be decided in accordance with law, expeditiously and preferably within the next four weeks, after a reasonable opportunity of hearing. For eight weeks or until disposal of the objection, whichever is earlier, no coercive action shall be taken on the impugned demand. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the recovery citation was disposed without a finding on the demand, leaving the consumer to file a Para 6.5 objection before the distribution corporation within four weeks. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed citation of Rs. 4,40,341 was left to a time-bound decision under Para 6.5 after hearing, with coercive action stayed for eight weeks or until that decision, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS. 4,40,341 IS CORRECT, AND THE CLAIM FOR A STATEMENT OF RATES CHARGED AND AMOUNTS DEPOSITED

The Court expressed no opinion on the merits and left those questions to the Para 6.5 objection. ¶ 1